Objection 6: Further, no man is called a spouse except on account of his espousals. But a man is said to be a spouse on account of actual marriage, according to the text (Sent. iv, D, 27). Therefore espousals are not always a promise of future marriage.

I answer that, Consent to conjugal union if expressed in words of the future does not make a marriage, but a promise of marriage; and this promise is called "a betrothal from plighting one's troth," as Isidore says (Etym. iv). For before the use of writing-tablets, they used to give pledges of marriage, by which they plighted their mutual consent under the marriage code, and they provided guarantors. This promise is made in two ways, namely absolutely, or conditionally. Absolutely, in four ways: firstly, a mere promise, by saying: "I will take thee for my wife," and conversely; secondly, by giving betrothal pledges, such as money and the like; thirdly, by giving an engagement ring; fourthly, by the addition of an oath. If, however, this promise be made conditionally, we must draw a distinction; for it is either an honorable condition, for instance if we say: "I will take thee, if thy parents consent," and then the promise holds if the condition is fulfilled, and does not hold if the condition is not fulfilled; or else the condition is dishonorable, and this in two ways: for either it is contrary to the marriage blessings, as if we were to say: "I will take thee if thou promise means of sterility," and then no betrothal is contracted; or else it is not contrary to the marriage blessings, as were one to say: "I will take thee if thou consent to my thefts," and then the promise holds, but the condition should be removed.

Reply to Objection 1: The betrothal itself and giving of sureties are a ratification of the promise, wherefore it is denominated from these as from that which is more perfect.

Reply to Objection 2: By this promise one party is bound to the other in respect of contracting marriage; and he who fulfills not his promise sins mortally, unless a lawful impediment arise; and the Church uses compulsion in the sense that she enjoins a penance for the sin. But he is not compelled by sentence of the court, because compulsory marriages are wont to have evil results; unless the parties be bound by oath, for then he ought to be compelled, in the opinion of some, although others think differently on account of the reason given above, especially if there be fear of one taking the other's life.

Reply to Objection 3: Such things are added only in confirmation of the promise, and consequently they are not distinct from it.

Reply to Objection 4: The condition that is appended does not destroy the liberty of marriage; for if it be unlawful, it should be renounced; and if it be lawful, it is either about things that are good simply, as were one to say, "I will take thee, if thy parents consent," and such a condition does not destroy the liberty of the betrothal, but gives it an increase of rectitude. or else it is about things that are useful, as were one to say: "I will marry thee if thou pay me a hundred pounds," and then this condition is appended, not as asking a price for the consent of marriage, but as referring to the promise of a dowry; so that the marriage does not lose its liberty. Sometimes, however, the condition appended is the payment of a sum of money by way of penalty, and then, since marriage should be free, such a condition does not hold, nor can such a penalty be exacted from a person who is unwilling to fulfill the promise of marriage.

Reply to Objection 5: James does not intend to forbid altogether the making of promises about the future, but the making of promises as though one were certain of one's life; hence he teaches that we ought to add the condition. "If the Lord will," which, though it be not expressed in words, ought nevertheless to be impressed on the heart.

Reply to Objection 6: In marriage we may consider both the marriage union and the marriage act; and on account of his promise of the first as future a man is called a "spouse" from his having contracted his espousals by words expressive of the future; but from the promise of the second a man is called a "spouse," even when the marriage has been contracted by words expressive of the present, because by this very fact he promises [spondet] the marriage act. However, properly speaking, espousals are so called from the promise [sponsione] in the first sense, because espousals are a kind of sacramental annexed to matrimony, as exorcism to baptism.

Whether seven years is fittingly assigned as the age for betrothal?

Objection 1: It would seem that seven years is not fittingly assigned as the age for betrothal. For a contract that can be formed by others does not require discretion in those whom it concerns. Now a betrothal can be arranged by the parents without the knowledge of either of the persons betrothed. Therefore a betrothal can be arranged before the age of seven years as well as after.

Objection 2: Further, just as some use of reason is necessary for the contract of betrothal, so is there for the consent to mortal sin. Now, as Gregory says (Dial. iv), a boy of five years of age was carried off by the devil on account of the sin of blasphemy. Therefore a betrothal can take place before the age of seven years.

Objection 3: Further, a betrothal is directed to marriage. But for marriage the same age is not assigned to boy and girl.

Objection 4: Further, one can become betrothed as soon as future marriage can be agreeable to one. Now signs of this agreeableness are often apparent in boys before the age of seven. Therefore they can become betrothed before that age.

Objection 5: Further, if persons become betrothed before they are seven years old, and subsequently after the age of seven and before the age of maturity renew their promise in words expressive of the present, they are reckoned to be betrothed. Now this is not by virtue of the second contract, since they intend to contract not betrothal but marriage. Therefore it is by the virtue of the first; and thus espousals can be contracted before the age of seven.

Objection 6: Further, when a thing is done by many persons in common, if one fails he is supplied by another, as in the case of those who row a boat. Now the contract of betrothal is an action common to the contracting parties. Therefore if one be of mature age, he can contract a betrothal with a girl who is not seven years old, since the lack of age in one is more than counterbalanced in the other.

Objection 7: Further, those who at about the age of puberty, but before it, enter into the marriage contract by words expressive of the present are reputed to be married. Therefore in like manner if they contract marriage by words expressive of the future, before yet close on the age of puberty, they are to be reputed as betrothed.

I answer that, The age of seven years is fixed reasonably enough by law for the contracting of betrothals, for since a betrothal is a promise of the future, as already stated (A[1]), it follows that they are within the competency of those who can make a promise in some way, and this is only for those who can have some foresight of the future, and this requires the use of reason, of which three degrees are to be observed, according to the Philosopher (Ethic. i, 4). The first is when a person neither understands by himself nor is able to learn from another; the second stage is when a man

can learn from another but is incapable by himself of consideration and understanding; the third degree is when a man is both able to learn from another and to consider by himself. And since reason develops in man by little and little, in proportion as the movement and fluctuation of the humors is calmed, man reaches the first stage of reason before his seventh year; and consequently during that period he is unfit for any contract, and therefore for betrothal. But he begins to reach the second stage at the end of his first seven years, wherefore children at that age are sent to school. But man begins to reach the third stage at the end of his second seven years, as regards things concerning his person, when his natural reason develops; but as regards things outside his person, at the end of his third seven years. Hence before his first seven years a man is not fit to make any contract, but at the end of that period he begins to be fit to make certain promises for the future, especially about those things to which natural reason inclines us more, though he is not fit to bind himself by a perpetual obligation, because as yet he has not a firm will. Hence at that age betrothals can be contracted. But at the end of the second seven years he can already bind himself in matters concerning his person, either to religion or to wedlock. And after the third seven years he can bind himself in other matters also; and according to the laws he is given the power of disposing of his property after his twenty-second year.

Reply to Objection 1: If the parties are betrothed by another person before they reach the age of puberty, either of them or both can demur; wherefore in that case the betrothal does not take effect, so that neither does any affinity result therefrom. Hence a betrothal made between certain persons by some other takes effect, in so far as those between whom the betrothal is arranged do not demur when they reach the proper age, whence they are understood to consent to what others have done.

Reply to Objection 2: Some say that the boy of whom Gregory tells this story was not lost, and that he did not sin mortally; and that this vision was for the purpose of making the father sorrowful, for he had sinned in the boy through failing to correct him. But this is contrary to the express intention of Gregory, who says (Dial. iv) that "the boy's father having neglected the soul of his little son, fostered no little sinner for the flames of hell." Consequently it must be said that for a mortal sin it is sufficient to give consent to something present, whereas in a betrothal the consent is to something future; and greater discretion of reason is required for looking to the future than for consenting to one present act. Wherefore a man can sin mortally before he can bind himself to a future obligation.

Reply to Objection 3: Regarding the age for the marriage contract a disposition is required not only on the part of the use of reason, but also on the part of the body, in that it is necessary to be of an age adapted to procreation. And since a girl becomes apt for the act of procreation in her twelfth year, and a boy at the end of his second seven years, as the Philosopher says (De Hist. Anim. vii), whereas the age is the same in both for attaining the use of reason which is the sole condition for betrothal, hence it is that the one age is assigned for both as regards betrothal, but not as regards marriage.

Reply to Objection 4: This agreeableness in regard to boys under the age of seven does not result from the perfect use of reason, since they are not as yet possessed of complete self-control; it results rather from the movement of nature than from any process of reason. Consequently, this agreeableness does not suffice for contracting a betrothal.

Reply to Objection 5: In this case, although the second contract does not amount to marriage, nevertheless the parties show that they ratify their former promise; wherefore the first contract is confirmed by the second.

Reply to Objection 6: Those who row a boat act by way of one cause, and consequently what is lacking in one can be supplied by another. But those who make a contract of betrothal act as distinct persons, since a betrothal can only be between two parties; wherefore it is necessary for each to be qualified to contract, and thus the defect of one is an obstacle to their betrothal, nor can it be supplied by the other.

Reply to Objection 7: It is true that in the matter of betrothal if the contracting parties are close upon the age of seven, the contract of betrothal is valid, since, according to the Philosopher (Phys. ii, 56), "when little is lacking it seems as though nothing were lacking." Some fix the margin at six months. but it is better to determine it according to the condition of the contracting parties, since the use of reason comes sooner to some than to others.

Whether a betrothal can be dissolved?

Objection 1: It would seem that a betrothal cannot be dissolved if one of the parties enter religion. For if I have promised a thing to someone I cannot lawfully pledge it to someone else. Now he who betroths himself promises his body to the woman. Therefore he cannot make a further offering of himself to God in religion.

Objection 2: Again, seemingly it should not be dissolved when one of the parties leaves for a distant country, because in doubtful matters one should always choose the safer course. Now the safer course would be to wait for him. Therefore she is bound to wait for him.

Objection 3: Again, neither seemingly is it dissolved by sickness contracted after betrothal, for no man should be punished for being under a penalty. Now the man who contracts an infirmity would be punished if he were to lose his right to the woman betrothed to him. Therefore a betrothal should not be dissolved on account of a bodily infirmity.

Objection 4: Again, neither seemingly should a betrothal be dissolved on account of a supervening affinity, for instance if the spouse were to commit fornication with a kinswoman of his betrothed; for in that case the affianced bride would be penalized for the sin of her affianced spouse, which is unreasonable.

Objection 5: Again, seemingly they cannot set one another free; for it would be a proof of greatest fickleness if they contracted together and then set one another free; and such conduct ought not to be tolerated by the Church. Therefore, etc.

Objection 6: Again, neither seemingly ought a betrothal to be dissolved on account of the fornication of one of the parties. For a betrothal does not yet give the one power over the body of the other; wherefore it would seem that they nowise sin against one another if meanwhile they commit fornication. Consequently a betrothal should not be dissolved on that account.

Objection 7: Again, neither seemingly on account of his contracting with another woman by words expressive of the present. For a subsequent sale does not void a previous sale. Therefore neither should a second contract void a previous one.

Objection 8: Again, neither seemingly should it be dissolved on account of deficient age; since what is not cannot be dissolved. Now a betrothal is null before the requisite age. Therefore it cannot be dissolved.

I answer that, In all the cases mentioned above the betrothal that has been contracted is dissolved, but in different ways. For in two of them---namely when a party enters religion, and when either of the affianced spouses contracts with another party by words expressive of the present---the betrothal is dissolved by law, whereas in the other cases it has to be dissolved according to the judgment of the Church.

Reply to Objection 1: The like promise is dissolved by spiritual death, for that promise is purely spiritual, as we shall state further on (Q[61], A[2]).

Reply to Objection 2: This doubt is solved by either party not putting in an appearance at the time fixed for completing the marriage. Wherefore if it was no fault of that party that the marriage was not completed, he or she can lawfully marry without any sin. But if he or she was responsible for the non-completion of the marriage, this responsibility involves the obligation of doing penance for the broken promise---or oath if the promise was confirmed by oath---and he or she can contract with another if they wish it, subject to the judgment of the Church.

Reply to Objection 3: If either of the betrothed parties incur an infirmity which notably weakens the subject (as epilepsy or paralysis), or causes a deformity (as loss of the nose or eyes, and the like), or is contrary to the good of the offspring (as leprosy, which is wont to be transmitted to the children), the betrothal can be dissolved, lest the betrothed be displeasing to one another, and the marriage thus contracted have an evil result. Nor is one punished for being under a penalty, although one incurs a loss from one's penalty, and this is not unreasonable.

Reply to Objection 4: If the affianced bridegroom has carnal knowledge of a kinswoman of his spouse, or "vice versa," the betrothal must be dissolved; and for proof it is sufficient that the fact be the common talk, in order to avoid scandal; for causes whose effects mature in the future are voided of their effects, not only by what actually is, but also by what happens subsequently. Hence just as affinity, had it existed at the time of the betrothal, would have prevented that contract, so, if it supervene before marriage, which is an effect of the betrothal, the previous contract is voided of its effect. Nor does the other party suffer in consequence, indeed he or she gains, being set free from one who has become hateful to God by committing fornication.

Reply to Objection 5: Some do not admit this case. Yet they have against them the Decretal (cap. Praeterea, De spons. et matr.) which says expressly: "Just as those who enter into a contract of fellowship by pledging their faith to one another and afterwards give it back, so it may be patiently tolerated that those who are betrothed to one another should set one another free." Yet to this they say that the Church allows this lest worse happen rather than because it is according to strict law. But this does not seem to agree with the example quoted by the Decretal.

Accordingly we must reply that it is not always a proof of fickleness to rescind an agreement, since "our counsels are uncertain" (Wis. 9:14).

Reply to Objection 6: Although when they become betrothed they have not yet given one another power over one another's body, yet if this [*Referring to the contention of the Objection] were to happen it would make them suspicious of one another's fidelity; and so one can ensure himself against the other by breaking off the engagement.

Reply to Objection 7: This argument would hold if each contract were of the same kind; whereas the second contract of marriage has greater force than the first, and consequently dissolves it.

Reply to Objection 8: Although it was not a true betrothal, there was a betrothal of a kind; and consequently, lest approval should seem to be given when they come to the lawful age, they should seek a dissolution of the betrothal by the judgment of the Church, for the sake of a good example.

OF THE DEFINITION OF MATRIMONY (THREE ARTICLES)

We must now consider the nature of matrimony. Under this head there are three points of inquiry:

(1) Whether matrimony is a kind of joining?

(2) Whether it is fittingly named?

(3) Whether it is fittingly defined?

Whether matrimony is a kind of joining?

Objection 1: It would seem that matrimony is not a kind of joining. Because the bond whereby things are tied together differs from their joining, as cause from effect. Now matrimony is the bond whereby those who are joined in matrimony are tied together. Therefore it is not a kind of joining.

Objection 2: Further, every sacrament is a sensible sign. But no relation is a sensible accident. Therefore since matrimony is a sacrament, it is not a kind of relation, and consequently neither is it a kind of joining.

Objection 3: Further, a joining is a relation of equiparance as well as of equality. Now according to Avicenna the relation of equality is not identically the same in each extreme. Neither therefore is there an identically same joining; and consequently if matrimony is a kind of joining, there is not only one matrimony between man and wife.

On the contrary, It is by relation that things are related to one another. Now by matrimony certain things are related to one another; for the husband is the wife's husband, and the wife is the husband's wife. Therefore matrimony is a kind of relation, nor is it other than a joining.

Further, the union of two things into one can result only from their being joined. Now such is the effect of matrimony (Gn. 2:24): "They shall be two in one flesh." Therefore matrimony is a kind of joining.

I answer that, A joining denotes a kind of uniting, and so wherever things are united there must be a joining. Now things directed to one purpose are said to be united in their direction thereto, thus many men are united in following one military calling or in pursuing one business, in relation to which they are called fellow-soldiers or business partners. Hence, since by marriage certain persons are directed to one begetting and upbringing of children, and again to one family life, it is clear that in matrimony there is a joining in respect of which we speak of husband and wife; and this joining, through being directed to some one thing, is matrimony; while the joining together of bodies and minds is a result of matrimony.

Reply to Objection 1: Matrimony is the bond by which they are tied formally, not effectively, and so it need not be distinct from the joining.

Reply to Objection 2: Although relation is not itself a sensible accident, its causes may be sensible. Nor is it necessary in a sacrament for that which is both reality and sacrament [*Cf. TP, Q[66], A[1]] to be sensible (for such is the relation of the aforesaid joining to this sacrament), whereas the words expressive of consent, which are sacrament only and are the cause of that same joining, are sensible.

Reply to Objection 3: A relation is founded on something as its cause---for instance likeness is founded on quality---and on something as its subject---for instance in the things themselves that are like; and on either hand we may find unity and diversity of relation. Since then it is not the same identical quality that conduces to likeness, but the same specific quality in each of the like subjects, and since, moreover, the subjects of likeness are two in number, and the same applies to equality, it follows that both equality and likeness are in every way numerically distinct in either of the like or equal subjects. But the relations of matrimony, on the one hand, have unity in both extremes, namely on the part of the cause, since it is directed to the one identical begetting; whereas on the part of the subject there is numerical diversity. The fact of this relation having a diversity of subjects is signified by the terms "husband" and "wife," while its unity is denoted by its being called matrimony.

Whether matrimony is fittingly named?

Objection 1: It would seem that matrimony is unfittingly named. Because a thing should be named after that which ranks higher. But the father ranks above the mother. Therefore the union of father and mother should rather be named after the father.

Objection 2: Further, a thing should be named from that which is essential to it, since a "definition expresses the nature signified by a name" (Metaph. iv, 28). Now nuptials are not essential to matrimony. Therefore matrimony should not be called nuptials.

Objection 3: Further, a species cannot take its proper name from that which belongs to the genus. Now a joining [conjunctio] is the genus of matrimony. Therefore it should not be called a conjugal union.

On the contrary, stands the common use of speech.

I answer that, Three things may be considered in matrimony. First, its essence, which is a joining together, and in reference to this it is called the "conjugal union"; secondly, its cause, which is the wedding, and in reference to this it is called the "nuptial union" from "nubo" [*The original meaning of 'nubo' is 'to veil'], because at the wedding ceremony, whereby the marriage is completed, the heads of those who are wedded are covered with a veil [*This is still done in some countries]; thirdly, the effect, which is the offspring, and in reference to this it is called "matrimony," as Augustine says (Contra Faust. xix, 26), because "a woman's sole purpose in marrying should be motherhood." Matrimony may also be resolved into "matris munium" [*i.e. munus], i.e. a mother's duty, since the duty of bringing up the children chiefly devolves on the women; or into "matrem muniens," because it provides the mother with a protector and support in the person of her husband; or into "matrem monens," as admonishing her not to leave her husband and take up with another man; or into "materia unius," because it is a joining together for the purpose of providing the matter of one offspring as though it were derived from {monos} and "materia"; or into "matre" and "nato," as Isidore says (Etym. ix), because it makes a woman the mother of a child.

Reply to Objection 1: Although the father ranks above the mother, the mother has more to do with the offspring than the father has. or we may say that woman was made chiefly in order to be man's helpmate in relation to the offspring, whereas the man was not made for this purpose. Wherefore the mother has a closer relation to the nature of marriage than the father has.

Reply to Objection 2: Sometimes essentials are known by accidentals, wherefore some things can be named even after their accidentals, since a name is given to a thing for the purpose that it may become known.

Reply to Objection 3: Sometimes a species is named after something pertaining to the genus on account of an imperfection in the species, when namely it has the generic nature completely, yet adds nothing pertaining to dignity; thus the accidental property retains the name of property, which is common to it and to the definition. Sometimes, however, it is on account of a perfection, when we find the generic nature completely in one species and not in another; thus animal is named from soul [anima], and this belongs to an animate body, which is the genus of animal; yet animation is not found perfectly in those animate beings that are not animals. It is thus with the case in point. for the joining of husband and wife by matrimony is the greatest of all joinings, since it is a joining of soul and body, wherefore it is called a "conjugal" union.

Whether matrimony is fittingly defined in the text?

Objection 1: It would seem that matrimony is unfittingly defined in the text* (Sent. iv, D, 27). [*The definition alluded to is as follows: "Marriage is the marital union of man and woman involving living together in undivided partnership."] For it is necessary to mention matrimony in defining a husband, since it is the husband who is joined to the woman in matrimony. Now "marital union" is put in the definition of matrimony. Therefore in these definitions there would seem to be a vicious circle.

Objection 2: Further, matrimony makes the woman the man's wife no less than it makes the man the woman's husband. Therefore it should not be described as a "marital union" rather than an uxorial union.

Objection 3: Further, habit [consuetudo] pertains to morals. Yet it often happens that married persons differ very much in habit. Therefore the words "involving their living together [consuetudinem] in undivided partnership" should have no place in the definition of matrimony.

Objection 4: Further, we find other definitions given of matrimony, for according to Hugh (Sum. Sent. vii, 6), "matrimony is the lawful consent of two apt persons to be joined together." Also, according to some, "matrimony is the fellowship of a common life and a community regulated by Divine and human law"; and we ask how these definitions differ.

I answer that, As stated above (A[2]), three things are to be considered in matrimony, namely its cause, its essence, and its effect; and accordingly we find three definitions given of matrimony. For the definition of Hugh indicates the cause, namely the consent, and this definition is self-evident. The definition given in the text indicates the essence of matrimony, namely the "union," and adds determinate subjects by the words "between lawful persons." It also points to the difference of the contracting parties in reference to the species, by the word "marital," for since matrimony is a joining together for the purpose of some one thing, this joining together is specified by the purpose

to which it is directed, and this is what pertains to the husband [maritum]. It also indicates the force of this joining---for it is indissoluble---by the words "involving," etc.

The remaining definition indicates the effect to which matrimony is directed, namely the common life in family matters. And since every community is regulated by some law, the code according to which this community is directed, namely Divine and human law, finds a place in this definition. while other communities, such as those of traders or soldiers, are established by human law alone.

Reply to Objection 1: Sometimes the prior things from which a definition ought to be given are not known to us, and consequently certain things are defined from things that are posterior simply, but prior to us; thus in the definition of quality the Philosopher employs the word "such" [quale] when he says (Cap. De Qualitate) that "quality is that whereby we are said to be such." Thus, too, in defining matrimony we say that it is a "marital union," by which we mean that matrimony is a union for the purpose of those things required by the marital office, all of which could not be expressed in one word.

Reply to Objection 2: As stated (A[2]), this difference indicates the end of the union. And since, according to the Apostle (1 Cor. 11:9), the "man is not [Vulg.: 'was not created'] for the woman, but the woman for the man," it follows that this difference should be indicated in reference to the man rather than the woman.

Reply to Objection 3: Just as the civic life denotes not the individual act of this or that one, but the things that concern the common action of the citizens, so the conjugal life is nothing else than a particular kind of companionship pertaining to that common action. wherefore as regards this same life the partnership of married persons is always indivisible, although it is divisible as regards the act belonging to each party.

The Reply to the Fourth Objection is clear from what has been said above.

OF THE MARRIAGE CONSENT CONSIDERED IN ITSELF (FIVE ARTICLES)

In the next place we have to consider the consent; and the first point to discuss is the consent considered in itself; the second is the consent confirmed by oath or by carnal intercourse; the third is compulsory consent and conditional consent; and the fourth is the object of the consent.

Under the first head there are five points of inquiry:

(1) Whether the consent is the efficient cause of matrimony?

(2) Whether the consent needs to be expressed in words?

(3) Whether consent given in words expressive of the future makes a marriage?

(4) Whether consent given in words expressive of the present, without inward consent, makes a true marriage outwardly?

(5) Whether consent given secretly in words expressive of the present makes a marriage?

Whether consent is the efficient cause of matrimony?

Objection 1: It would seem that consent is not the efficient cause of matrimony. For the sacraments depend not on the human will but on the Divine institution, as shown above (Sent. iv, D, 2; TP, Q[64], A[2]). But consent belongs to the human will. Therefore it is no more the cause of matrimony than of the other sacraments.

Objection 2: Further, nothing is its own cause. But seemingly matrimony is nothing else than the consent, since it is the consent which signifies the union of Christ with the Church.

Objection 3: Further, of one thing there should be one cause. Now there is one marriage between two persons, as stated above (Q[44], A[1]); whereas the consents of the two parties are distinct, for they are given by different persons and to different things, since on the one hand there is consent to take a husband, and on the other hand consent to take a wife. Therefore mutual consent is not the cause of matrimony.

On the contrary, Chrysostom [*Hom. xxxii in the Opus Imperfectum, falsely ascribed to St. John Chrysostom] says: "It is not coition but consent that makes a marriage."

Further, one person does not receive power over that which is at the free disposal of another, without the latter's consent. Now by marriage each of the married parties receives power over the other's body (1 Cor. 7:4), whereas hitherto each had free power over his own body. Therefore consent makes a marriage.

I answer that, In every sacrament there is a spiritual operation by means of a material operation which signifies it; thus in Baptism the inward spiritual cleansing is effected by a bodily cleansing. Wherefore, since in matrimony there is a kind of spiritual joining together, in so far as matrimony is a sacrament, and a certain material joining together, in so far as it is directed to an office of nature and of civil life, it follows that the spiritual joining is the effect of the Divine power by means of the material joining. Therefore seeing that the joinings of material contracts are effected by mutual consent, it follows that the joining together of marriage is effected in the same way.

Reply to Objection 1: The first cause of the sacraments is the Divine power which works in them the welfare of the soul; but the second or instrumental causes are material operations deriving their efficacy from the Divine institution, and thus consent is the cause in matrimony.

Reply to Objection 2: Matrimony is not the consent itself, but the union of persons directed to one purpose, as stated above (Q[44], A[1]), and this union is the effect of the consent. Moreover, the consent, properly speaking, signifies not the union of Christ with the Church, but His will whereby His union with the Church was brought about.

Reply to Objection 3: Just as marriage is one on the part of the object to which the union is directed, whereas it is more than one on the part of the persons united, so too the consent is one on the part of the thing consented to, namely the aforesaid union, whereas it is more than one on the part of the persons consenting. Nor is the direct object of consent a husband but union with a husband on the part of the wife, even as it is union with a wife on the part of the husband.

Whether the consent needs to be expressed in words?

Objection 1: It would seem that there is no need for the consent to be expressed in words. For a man is brought under another's power by a vow just as he is by matrimony. Now a vow is binding in God's sight, even though it be not expressed in words. Therefore consent also makes a marriage binding even without being expressed in words.

Objection 2: Further, there can be marriage between persons who are unable to express their mutual consent in words, through being dumb or of different languages. Therefore expression of the consent by words is not required for matrimony.

Objection 3: Further, if that which is essential to a sacrament be omitted for any reason whatever, there is no sacrament. Now there is a case of marriage without the expression of words if the maid is silent through bashfulness when her parents give her away to the bridegroom. Therefore the expression of words is not essential to matrimony.

On the contrary, Matrimony is a sacrament. Now a sensible sign is required in every sacrament. Therefore it is also required in matrimony, and consequently there must needs be at least words by which the consent is made perceptible to the senses.

Further, in matrimony there is a contract between husband and wife. Now in every contract there must be expression of the words by which men bind themselves mutually to one another. Therefore in matrimony also the consent must be expressed in words.

I answer that, As stated above (A[1]), the marriage union is effected in the same way as the bond in material contracts. And since material contracts are not feasible unless the contracting parties express their will to one another in words, it follows that the consent which makes a marriage must also be expressed in words, so that the expression of words is to marriage what the outward washing is to Baptism.

Reply to Objection 1: In a vow there is not a sacramental but only a spiritual bond, wherefore there is no need for it to be done in the same way as material contracts, in order that it be binding, as in the case of matrimony.

Reply to Objection 2: Although the like cannot plight themselves to one another in words, they can do so by signs, and such signs count for words.

Reply to Objection 3: According to Hugh of S. Victor (Tract. vii, Sum. Sent.), persons who are being married should give their consent by accepting one another freely. and this is judged to be the case if they show no dissent when they are being wedded. Wherefore in such a case the words of the parents are taken as being the maid's, for the fact that she does not contradict them is a sign that they are her words.

Whether consent given in words expressive of the future makes a marriage?

Objection 1: It would seem that consent given in words expressive of the future makes a marriage. For as present is to present, so is future to future. But consent given in words expressive of the present makes a marriage in the present. Therefore consent given in words expressive of the future makes a marriage in the future.

Objection 2: Further, in other civil contracts, just as in matrimony, a certain obligation results from the words expressing consent. Now in other contracts it matters not whether the obligation is effected by words of the present or of the future tense. Therefore neither does it make any difference in matrimony.

Objection 3: Further, by the religious vow man contracts a spiritual marriage with God. Now the religious vow is expressed in words of the future tense, and is binding. Therefore carnal marriage also can be effected by words of the future tense.

On the contrary, A man who consents in words of the future tense to take a particular woman as his wife, and after, by words of the present tense, consents to take another, according to law must take the second for his wife (cap. Sicut ex Litteris, De spons. et matr.). But this would not be the case if consent given in words of the future tense made a marriage, since from the very fact that

his marriage with the one is valid, he cannot, as long as she lives, marry another. Therefore consent given in words of the future tense does not make a marriage.

Further, he who promises to do a certain thing does it not yet. Now he who consents in words of the future tense, promises to marry a certain woman. Therefore he does not marry her yet.

I answer that, The sacramental causes produce their effect by signifying it; hence they effect what they signify. Since therefore when a man expresses his consent by words of the future tense, he does not signify that he is marrying, but promises that he will marry, it follows that a consent expressed in this manner does not make a marriage, but a promise [sponsionem] of marriage, and this promise is known as a betrothal [sponsalia].

Reply to Objection 1: When consent is expressed in words of the present tense, not only are the words actually present, but consent is directed to the present, so that they coincide in point of time; but when consent is given in words of the future tense, although the words are actually present, the consent is directed to a future time, and hence they do not coincide in point of time. For this reason the comparison fails.

Reply to Objection 2: Even in other contracts, a man who uses words referring to the future, does not transfer the power over his property to another person---for instance if he were to say "I will give thee"---but only when he uses words indicative of the present.

Reply to Objection 3: In the vow of religious profession it is not the spiritual marriage itself that is expressed in words which refer to the future, but an act of the spiritual marriage, namely obedience or observance of the rule. If, however, a man vow spiritual marriage in the future, it is not a spiritual marriage, for a man does not become a monk by taking such a vow, but promises to become one.

Whether, in the absence of inward consent, a marriage is made by consent given in words of the present?

Objection 1: It would seem that even in the absence of inward consent a marriage is made by consent expressed in words of the present. For "fraud and deceit should benefit no man," according to the law (cap. Ex Tenore, De Rescrip., cap. Si Vir, De cognat. spir.). Now he who gives consent in words without consenting in heart commits a fraud. Therefore he should not benefit by it, through being released of the bond of marriage.

Objection 2: Further, the mental consent of one person cannot be known to another, except in so far as it is expressed in words. If then the expression of the words is not enough, and inward consent is required in both parties, neither of them will be able to know that he is truly married to the other; and consequently whenever he uses marriage he will commit fornication.

Objection 3: Further, if a man is proved to have consented to take a certain woman to wife in words of the present tense, he is compelled under pain of excommunication to take her as his wife, even though he should say that he was wanting in mental consent, notwithstanding that afterwards he may have contracted marriage with another woman by words expressive of consent in the present. But this would not be the case if mental consent were requisite for marriage. Therefore it is not required.

On the contrary, Innocent III says in a Decretal (cap. Tua Nos, De Spons. et matr.) in reference to this case: "Other things cannot complete the marriage bond in the absence of consent."